

legal remaindermen. It is, however, now clearly settled, that whatever may be the *legal* liability of a *legal* tenant for life in respect of *permissive waste* (*c*), the trustee cannot (where there is no special clause of management) interfere with the possession of an equitable tenant for life who neglects to repair (*d*).

9. **Legal rights. — Equitable rights.** — In other respects the rights in equity must, it is conceived, be governed by those at law. Thus a legal tenant for life may cut timber for the purpose of repairs (*e*), though he may not cut timber to sell it and apply the produce (*f*), or to repay himself the outlay in repairs (*g*); and similarly the trustee may, it is conceived, as against the remainderman, cut timber for necessary repairs, if the tenant for life will consent to an application of income towards repairs in making use of the timber. The repairs by a tenant for life, however substantial and lasting, are his own voluntary act, and do not arise from any obligation, and he cannot claim any charge for them upon the inheritance (*h*).

Repairs and improvements. — Nor [before the Settled Land Act, 1882, would] the Court at his instance direct [*575] *lasting *improvements* to be made (*a*); and though it was said by the Court in one case that the rule might not be absolutely without exception, as if there were a settled estate, and a fund directed to be laid out in the purchase to the same uses, it might be more beneficial to the

(*c*) *Powys v. Blagrove*, 4 De G. M. and G. 458, and cases there cited by Lord Cranworth; *Harnett v. Maitland*, 16 M. & W. 257. Now by 36 & 37 Vict. c. 66, where there is any conflict between the rules of Equity and the rules of Common Law, the rules of Equity are to prevail.

(*d*) *Powys v. Blagrove*, Kay, 495; 4 De G. M. & G. 448; and see *Re Skingley*, 3 Mac. and G. 221; *Gregg v. Coates*, 23 Beav. 33.

(*e*) Co. Lit. 54 b.

(*f*) Co. Lit. 53 b. [But now by the Settled Land Act 1882, s. 35, a tenant for life, whether legal or equitable, may, with the consent of the trustees of the settlement, or an order

of the Court, cut and sell timber ripe and fit for cutting, but three-fourths of the net proceeds are to be retained in settlement.]

(*g*) *Gower v. Eyre*, G. Coop. 156; and see *Duke of Marlborough v. St. John*, 5 De G. & Sm. 181.

(*h*) *Hibbert v. Cooke*, 1 S. & S. 552; *Caldecott v. Brown*, 2 Hare, 144; and see *Bostock v. Blakeney*, 2 B. C. C. 653; *Hamer v. Tilsley*, Johns. 486; *Dent v. Dent*, 30 Beav. 363; *Floyer v. Bankes*, 8 L. R. Eq. 115; *Gilliland v. Crawford*, 4 I. R. Eq. 35; *Re Leigh's Estate*, 6 L. R. Ch. App. 887.

(*a*) *Nairn v. Majoribanks*, 3 Russ. 582.